

June 5, 2020
VIA E-MAIL

Mr. Gary Kardian
Director, Office of Service Contracts & Tariffs
Federal Maritime Commission
Room 940
800 North Capitol Street, N.W.
Washington, D.C. 20573

Re: **URGENT -- REQUEST FOR SPECIAL PERMISSION --**
Maersk A/S, Org. No. 025360

Dear Mr. Kardian:

Pursuant to 46 C.F.R. §520.14, Maersk A/S respectfully requests permission to deviate from 46 C.F.R. §520.8(a) and to increase the Destination Terminal Handling “DHC” published in its tariff SEAU-OT-9504950, SEAU-OT-10067658 and SEAU-OT-9538848 to June 2nd, 2020. The reasons supporting this request are set forth below.

Maersk A/S tariffs SEAU-OT-9504950, SEAU-OT-10067658 and SEAU-OT-9538848 cover the trades from Central America And Caribbean to North America; Central America And Caribbean, West Coast of South America to North America; and East Coast of South America to North America. Prior to June 2nd, 2020, the mentioned tariffs contained a DHC Surcharge in the amount of USD500 per 20’/40’ standard dry containers and USD560 per 20’/40’ reefer containers.

Unfortunately, while carrying out some tariff updates instructed by the Surcharge Owners at Maersk for effective date July 1st, the tariff personnel on June 1st, 2020 inadvertently expired the DHC amounts, effective June 1st, 2020. The same date this error occurred, the tariff personnel corrected this error by reinstating the DHC with a 30-day notice, effective July 1st, 2020 at USD530 per 20’/40’ standard dry containers and USD600 per 20’/40’ reefer containers. Please refer to the Rate Lookup Document attached for screenshots illustrating the impacted tariffs prior and after this error occur and the statement from the tariff team’s supervisor, Subash Murugesan.

As a result of the mentioned inadvertent error, Maersk has an incorrect and obviously non-compensatory DHC surcharge level published in its tariffs from June 2nd until June 30th.

Considering the foregoing, Maersk hereby requests special permission to deviate from 46 C.F.R. §520.8(a) and to advance the effective date of the Destination Terminal Handling “DHC” to June 2nd, 2020. Clerical errors of the type described above constitute good cause for the exercise of special permission authority. 46 C.F.R. §520.14(b).

Mr. Gary Kardian

June 5, 2020

Page 2

Confirmation of three separate payments in the amount of \$313 each covering the filing fees for this request is enclosed.

Due to the COVID-19 unfortunate situation, I'm currently working from home with no access to a scanner. For this reason, I'm unable to scan the exhibits included to support this petition.

Should you have any questions regarding the foregoing, please do not hesitate to contact the undersigned.

Sincerely,

Maria Pereira

By: Maria Pereira
Maersk representative

Rate look-up when the correct rates have been published: Effective 1st Feb 2019

Origin			
☐ Documentation Fee - Origin	Rate	1x 70.00 USD (Per Bill of Lading)(SLI-19175753)	70.00 USD
Freight			
☐ Basic Ocean Freight	Rate	1x 30.00 USD (Per Container) (TLI-18745915)	30.00 USD
☐ Emergency Bunker Fee	Rate	1x 50.00 USD (Per Container) (SLI-28978307)	50.00 USD
☐ Bunker Adjustment Factor	Rate	1x 585.00 USD (Per Container) (SLI-29524492)	585.00 USD
☐ Low Sulphur Surcharge	Rate	1x 110.00 USD (Per Container) (SLI-19178113)	110.00 USD
Destination			
☐ Terminal Handling Service - Destination	Rate	1x 500.00 USD (Per Container) (SLI-28623323)	500.00 USD
Amendment Code	Effective Date	Expiry Date	Publication Date
A	Feb 01, 2019	May 31, 2020	Dec 24, 2018
☐ Additional Service(Optional VAS)			
Total price			1345.00 USD
Rate of exchange used for calculation			
Rate of Exchange date: 01/02/2019			
Calculation date: 01/02/2019			
Rate information is an indication only and rates are subject to our terms and conditions			
Terms and conditions available at https://terms.sealandmaersk.com/americas/rate-web			
All information contained in the tariff is true and accurate and no unlawful alterations will be permitted.			

Rate look-up date before the error took place: Effective 31st May 2020

Import Mode
Rate Calculation Date
Commodity

Merchant Haulage(CY)
31.05.2020
Beer, beverages



Container

 1x40ft Dry 18000 (kg)

Hide details

Please notice! This look up is not covered by a service contract, therefore tariff rates have been applied.

Rate Details

Charge	Source	Local currency	Sub Total
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Origin

 Documentation Fee - Origin	Rate	1x 70.00 USD (Per Bill of Lading)(SLI-19175753)	70.00 USD
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Freight

 Basic Ocean Freight	Rate	1x 358.00 USD (Per Container) (TU-18745915)	358.00 USD
 Bunker Adjustment Factor	Rate	1x 345.00 USD (Per Container) (SLI-29524492)	345.00 USD
 Low Sulphur Surcharge	Rate	1x 76.00 USD (Per Container) (SLI-19178113)	76.00 USD

Destination

 Terminal Handling Service - Destination	Rate	1x 500.00 USD (Per Container) (SLI-28623323)	500.00 USD
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Amendment Code	Effective Date	Expiry Date	Publication Date
A	Feb 01, 2019	May 31, 2020	Dec 24, 2018

 Additional Services(Optional VAC)

Rate look-up after the error took place: DHC is missing

From (City, Country/Region)	Veracruz (Veracruz Llave), Mexico
Export Mode	Merchant Haulage(CY)
To (City, Country/Region)	Houston (Texas), United States
Import Mode	Merchant Haulage(CY)
Rate Calculation Date	03.06.2020
Commodity	Beer, beverages

 

Container

 1x40ft Dry 18000 (kg) [Hide details](#)

Please notice! This look up is not covered by a service contract, therefore tariff rates have been applied.

Rate Details

Charge	Source	Local currency	Sub Total
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Origin

 Documentation Fee - Origin	Rate	1x 70.00 USD (Per Bill of Lading)(SLI-19175753)	70.00 USD
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Freight

 Basic Ocean Freight	Rate	1x 358.00 USD (Per Container) (TLI-18745915)	358.00 USD
 Bunker Adjustment Factor	Rate	1x 241.00 USD (Per Container) (SLI-29524492)	241.00 USD
 Low Sulphur Surcharge	Rate	1x 76.00 USD (Per Container) (SLI-19178113)	76.00 USD

 Additional Service(Optional VAS)

Total price 745.00 USD

Rate of exchange used for calculation

Rate of Exchange date: 03/06/2020

Calculation date: 03/06/2020

DHC applied from 1st July 2020:

Lookup Details

From (City, Country/Region)	Veracruz (Veracruz Llave), Mexico
Export Mode	Merchant Haulage(CY)
To (City, Country/Region)	Houston (Texas), United States
Import Mode	Merchant Haulage(CY)
Rate Calculation Date	01.07.2020
Commodity	Beer, beverages



Container

 1x40ft Dry 18000 (kg)

Please notice! This look up is not covered by a service contract, therefore tariff rates have been applied.

Rate Details

Charge	Source	Local currency	Sub Total
Origin			
 Documentation Fee - Origin	Rate	1x /0.00 USD (Per Bill of Lading)(SU-19175753)	/0.00 USD
Freight			
 Basic Ocean Freight	Rate	1x 504.00 USD (Per Container) (TU-18745915)	504.00 USD
 Bunker Adjustment Factor	Rate	1x 271.00 USD (Per Container) (SU-29524492)	271.00 USD
 Low Sulphur Surcharge	Rate	1x 76.00 USD (Per Container) (SU-19178113)	76.00 USD
Destination			
 Terminal Handling Service - Destination	Rate	1x 530.00 USD (Per Container) (SU-36018665)	530.00 USD
 Additional Service(Optional VAS)			

Tanga FitzGibbon

From: Tanga FitzGibbon
Sent: Monday, June 29, 2020 6:39 PM
To: Tanga FitzGibbon
Subject: FW: DHC Special Permission
Attachments: DHC Special Permission - Sealand America

From: Subash Murugesan <Subash.Murugesan@maersk.com>
Sent: Thursday, June 4, 2020 8:01 AM
To: Maria Pereira <Maria.Pereira@maersk.com>
Subject: DHC Special Permission

Hi Maria,

WRITTEN STATEMENT OF SUBASH MURUGESAN

I am the Team leader, Tariff Maintenance For Maersk A/S. My department is currently responsible for maintaining the Tariff charges for the US trades for the Maersk container shipping business (i.e Maersk, Safmarine and Sealand).

In June 2020, my department was working on modifying Terminal Handling Service – Destination (DHC) in the Sealand tariff. Erroneously my team member has updated the expiry date as 1st June 2020 for existing DHC rates and updated the new DHC with effective 1st July 2020. Due to the incorrect expiry date, the DHC is missing from 2nd June to 30th June. This is a clerical error and the intent was that the DHC levels as shown below would be maintained.

Origin	Destination	Container size/type	Currency	Current	Effective 7/1/20
World	US	40'/40'HC/45' Dry	USD	\$500	\$530
World	US	40'HC Reefer	USD	\$560	\$600

This 03rd of June 2020.

Please accept this email as confirmation that the attached details are accurate. I'm unable to sign because I'm working from home without access to a fax or scanner.

Kindly check and do the needful.

Regards,
Subash.

Classification: Public